

政府資料開放授權條款－第1版

中文 [English](#)

Open Government Data License, version 1.0

The Open Government Data License (the License) is intended to facilitate government data sharing and application among the public in outreach and promotion method, and to advance government service efficacy and government data value and quality in collaboration with the creative private sector.

1. Definition

- 1.1. “Data Providing Organization” refers to government agency, government-owned business, public school and administrative legal entity that has various types of electronic data released to the public under the License when it is obtained or made in the scope of performance for public duties.
- 1.2. “User” refers to individual, legal entity or group that receives and uses Open Data under the License, including individual, legal entity or group who is receiving and using Open Data as the recipient of the former Users under the sublicensing scenario.
- 1.3. “Open Data” means data that the Data Providing Organization owns its copyright in whole or has full authority to provide it to third parties in sublicensing way, and provides it in an open and modifiable form such that there are no unnecessary technological obstacles to the performance of the licensed rights, including but not limited to the following creation protected by copyright:
 - a. “Compilation Work” means a work formed by the creative selection and arrangement of data, and can be protected by copyright law, such as database or other qualified structured data combination.
 - b. “Material” means a separate work, that is collected into the Open Data aggregation and can be protected by copyright law independently.
- 1.4. “Derivative Work” means any adaptation based upon the Open Data provided under the License and in which the original data is reproduced, adapted, compiled, or otherwise modified.
- 1.5. “Information” means the pure record that is not subject to copyright law and providing along with the Open Data. Accordingly, the granting of copyright license hereunder does not apply to such Information, however, other provisions of the License shall be applied to it as well as to the Open Data.

2. Grant of Copyright License

- 2.1. The Data Providing Organization grants User a perpetual, worldwide, non-exclusive, irrevocable, royalty-free copyright license to reproduce, distribute, publicly transmit, publicly broadcast, publicly recite, publicly present, publicly perform, compile, adapt to the Open Data provided for any purpose, including but not limited to making all kinds of Derivative Works either as products or services.
- 2.2. User can sublicense the copyrights which he/she is granted through 2.1. to others.
- 2.3. Any additional written offer or other formality for copyright license from the Data Providing Organization is not required, if User makes use of Open Data in compliance with the License.
- 2.4. The License does not grant any rights in the patents and trademarks.

3. Condition and Obligation

- 3.1. By utilizing the Open Data provided under the License, User indicates his/her acceptance of this License and all its terms and conditions overall to do so, and shall make the reasonable efforts with respect to moral right protection of the third parties involved.
- 3.2. When User makes use of the Open Data and its Derivative Work, he/she must make an explicit notice of statement as attribution requested in the Exhibit below by the Data Providing Organization. If User fails to comply with the attribution requirement, the rights granted under this License shall be deemed to have been void ab initio.

4. License Version and Compatibility

4.1. When a new version of the License has been updated and declared, if not the Data Providing Organization has already appointed a specific version of the License for the Open Data it provided, User may make use of the Open Data under the terms of the version of the License under which he/she originally received, or under the terms of any subsequent version published thereafter.

4.2. The License is compatible with the Creative Commons Attribution License 4.0 International. This means that when the Open Data is provided under the License, User automatically satisfies the conditions of this License when he/she makes use of the Open Data in compliance with the Creative Commons Attribution License 4.0 International thereafter.

5. Cessation of Data Providing

5.1. Under the circumstances described hereunder, the Data Providing Organization may cease to provide all or part of a specific Open Data, and User shall not claim any damages or compensations on account of that to the provider:

- a. It has been evaluated by the Data Providing Organization that continuously providing of a specific Open Data as not being met the requirement of public interest due to the change of circumstances unpredictable or for a legitimate cause.
- b. A provided Open Data might jeopardize third parties' intellectual property rights, privacy rights, or other interests protected at law.

6. Disclaimer

6.1. The providing of Open Data under the License shall not be construed as any statement, warranty, or implication to the recommendation, permission, approval, or sanction of all kinds of authoritative declaration of intention made by the Data Providing Organization. And the Data Providing Organization shall only be liable to make the correcting and updating when the errors or omissions of Open Data provided by it has been acknowledged.

6.2. The Data Providing Organization shall not be liable for damage or loss User encounters when he/she makes use of the Open Data provided under the License. This disclaimer applies as well when User has third parties encountered damage or loss and thus has been claimed for remedies. Unless otherwise specified according to law, the Data Providing Organization shall not be held responsible for any damages or compensations herein.

6.3. User shall be liable for the damages to the Data Providing Organization, if he/she has used the Open Data provided wrongfully due to an intentional or negligent misconduct and caused damages to the Data Providing Organization. The same reimbursement rule for wrongful misconducting shall be applied to the User when the damaged one is a third party and the compensations have already been disbursed by the Data Providing Organization to the third party due to a legal claim.

7. Governing Law

7.1. The interpretation, validity, enforcement and matters not mentioned herein for the License is governed by the Laws of Republic of China (Taiwan).

Exhibit - Attribution

- a. Data Providing Organization/Agency [year] [distinguishing full name of the released Open Data and its version number]
- b. The Open Data is made available to the public under the Open Government Data License, User can make use of it when complying to the condition and obligation of its terms.
- c. Open Government Data License: <https://data.gov.tw/license>

...